IRAD JOGORKU SOTU
SUPREME COURT OF IRAD
ВЕРХОВНЫЙ СУД ИРАДА
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RESOLUTION OF THE PLENUM

23 May 2025 Talas No. 3

On taking account in civil cases of agreements reached before councils of elders

The Plenum of the Supreme Court, having regard to the number of civil cases in which the parties rely on agreements reached before councils of elders, resolves to give the following guidance.

1. A written record of an agreement reached by the parties before a council of elders under customary law may be received by a court of the Zone as written evidence of what the parties agreed, together with the other evidence in the case.

2. Such a record is not a judgment of a court of the Zone and is not enforced as such. A party who seeks enforcement shall bring a claim in the competent court in the ordinary way.

3. The court shall establish that each party took part in the agreement freely and understood it, and shall hear the parties, and where needed the elders present, as witnesses.

4. In disputes on the passage of livestock across highway easements the courts shall apply the decision of the Supreme Court in the Pastoral Transit Case (May 2015), which recognised the customary right of herders to drive livestock across highway easements without municipal licensing penalties.

5. The jurisdiction of the courts of the Zone extends to the Irad Special Economic Zone. Matters arising across the Qara-Chik Demarcation Line are handled through the liaison arrangements of the 2007 ceasefire; the courts shall not issue process across the Line.

6. Where a party or witness does not speak the language of the proceedings, the court shall provide an interpreter.

7. This resolution shall be sent to the district and magistrate courts and published.

Chief Justice of the Supreme Court of Irad A. Nazarbekov